TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MAY 19, 2025
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Elliott Barrow, Aaron Butner, Molly Hall, Joan Spier, Megan Stevens (arrived at 6:03 pm).
Staff: Chris Swalhah, Eddie Bernard, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Ms. Hall seconded the motion. All in favor.

Ms. Stevens entered at this time (6:03 pm).

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-07-25, 1248 Waterfront Drive, TMS# 558-10-00-062,** Request for relief from §156.225(C) to allow the removal of a 41.5'' Historic Live Oak.

- Mr. Swalhah reviewed the staff comments with the Board.

- Mr. Jerry Bulcher, owner, and Ms. Hannah Hunter, arborist, reviewed the request with the Board.

- Ms. Ann Bulcher, owner, stated that they are concerned with their safety and wellbeing as hurricane season is approaching and the tree is showing decline. She stated that they would like to be pre-emptive in removing the tree prior to the hurricane season to prevent any possible damage to their home and to their neighbor's home.

- There being no further comments, Mr. Wood moved to Board questions.

- Ms. Hunter rebutted and reviewed the risk of the tree with the Board. She stated that a level 2 assessment was completed and it was determined to be in poor health with a high risk and recommended for removal.

- Mr. Swalhah rebutted that the bulkhead was required due to the proximity of the lake. Additionally, the home was built prior to tree protection being required.

- Mr. Wood closed public comment and moved to Board deliberation.

- *Mr. Barrow moved for denial based on the findings that there that there are no extraordinary conditions as testified by the arborist, there is no evidence produced that the conditions do not apply to surrounding property, but it could be supposed that the conditions do not apply to the surrounding property, denial would not unreasonably restrict or prohibit the use of the property, the issue of whether removal of the tree would not be a detriment to the neighborhood; however, removal of trees would be detrimental to the public good as they provide oxygen through photosynthesis. Mr. Wood seconded the motion. Motion failed on a 3 to 4 vote with Mr. Barrow, Ms. Spier, and Mr. Wood in favor; Mr. Butner, Mr. Branch, Ms. Stevens, and Ms. Hall opposed.*

- *Mr. Branch moved for approval based on the findings that there are extraordinary conditions with the proximity of the lake, the home was built prior to tree protection requirements, there is evidence that the tree will fail, the bulkhead is required due to the lake, the property is unreasonably restricted due to safety issues and possible threat of life due to the failing condition of the tree, neighbors do not see a detriment to the removal of the tree, and removal with mitigation of younger healthier trees would be a benefit. Mr. Butner seconded the motion. Motion passed on a 4 to 3 vote with Mr. Butner, Mr. Branch, Ms. Stevens, and Ms. Hall in favor; Mr. Barrow, Ms. Spier, and Mr. Wood opposed.*

The Board convened for a short break at 7:01 pm and reconvened at 7:05 pm.

2. **Case V-14-25, 420 Whilden Street, TMS# 532-01-00-125,** Request for relief from §156.303(Table) to allow a 1-foot 11 & ½ inch encroachment into the side setback and 5-foot encroachment into the rear setback for the construction of a new home.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Carroll, 1080 Cottingham Drive, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Carroll rebutted that there are extraordinary conditions due to the smaller lot and it would be difficult to build a home for the family needs.

- Mr. Swalhah reviewed the process for this issue coming before the Board for the variance.

- Mr. Wood closed public comment.

- *Mr. Branch moved for denial based on the findings that there are no extraordinary conditions and based on the state criteria, all four criteria must be met to grant a variance. Ms. Stevens seconded the motion. All in favor.*

3. **Case V-15-25, 1668 Farmers Way, TMS# 577-14-00-253,** Request for relief from §156.105(D)(5)(b) to allow an encroachment into the side setback for the construction of a generator stand.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. William Felmly, owner, reviewed the request with the Board.

- *Mr. Butner moved for approval of submittal of additional information. Ms. Stevens seconded the motion. All in favor.*

- Mr. Dan Mollock, 1553 Red Tide, reviewed the dimensions of the generator stand with the Board.

- Mr. Swalhah stated that the revised drawing would meet the Town standards and stated that the matter could be remanded back to staff for approval.

Mr. Wood closed public comment.

- *Ms. Stevens moved to remand this issue back to staff for review based on the drawing of the raised generator enclosure submitted by the applicant will meet the Town requirements. Ms. Hall seconded the motion. All in favor.*

H. Tree Code Discussion

- Mr. Swalhah reviewed the new Tree protection sections of the Zoning Code with the Board.

I. Election of Officers

- The Board elected Mr. Wood as chair and Ms. Stevens as vice-chair.

There being no further business, the meeting adjourned at 8:03 pm.

Submitted by,
L. Lynes
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